Calendar Line 5
Case Name: *Silicon Valley TaxPayers Association Inc. et al. vs City of Campbell et al.*
Case No.: 25CV455853

Plaintiff moves to strike or tax certain costs claimed by Defendants, the prevailing parties, including (1) a court reporter cancellation fee of $850, and (2) electronic filing fees incurred through Defendants' selected e-filing service provider. Plaintiff contends the costs are either unnecessary or unreasonable, arguing that Defendants should have avoided the reporter cancellation charge and should have used a less expensive "self-service" e-filing option rather than a preferred e-filing vendor. Plaintiff alternatively contends any recoverable costs should be apportioned.

A prevailing party is entitled to recover costs as a matter of right unless otherwise provided by statute. (Code Civ. Proc., § 1032(b).) A verified memorandum of costs is prima facie evidence that the costs, amount, and necessity of the items claimed are proper. The burden then shifts to the party seeking to tax costs to show that an item is not recoverable, was not reasonably necessary, or was unreasonable in amount. (See *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

Court Reporter Cancellation Fee

The Court recognizes that an $850 cancellation fee is a significant expense and appreciates Plaintiff's concern that paying that amount for a service ultimately not utilized appears wasteful. Nevertheless, the relevant inquiry is not whether the charge could have been avoided in hindsight, but whether Defendants acted reasonably when arranging for the court reporter and whether the resulting expense was reasonably necessary to the conduct of the litigation. The cost statute permits recovery of fees for court reporters obtained for trial or proceedings when otherwise recoverable. (Code Civ. Proc., § 1033.5(a)(11).) The fact that the proceeding ultimately did not require the reporter does not, standing alone, establish that the expense was unreasonable or unnecessary when incurred.

Plaintiff has not demonstrated that Defendants acted unreasonably in arranging for court reporting services or that the cancellation fee resulted from conduct that renders the cost nonrecoverable. The Court does not find that a prevailing party forfeits recovery of a reasonable litigation expense merely because circumstances later changed and the service was cancelled.

Electronic Filing Fees

The Court also declines to tax the claimed electronic filing fees. Electronic filing expenses are recoverable costs. (Code Civ. Proc., § 1033.5(a)(14).) Plaintiff does not dispute that Defendants' e-filing provider is an approved electronic filing service provider. Rather, Plaintiff argues Defendants should have selected a less expensive alternative, namely self-service e-filing.

The Court is not persuaded that a prevailing party's choice among approved e-filing methods renders the resulting expense unreasonable or requires the Court to engage in post hoc cost comparison among available filing options. Plaintiff has not shown that the fees charged were excessive, improper, or outside the range of reasonable filing-related expenses. The cost statutes do not require a party to select the least expensive available service where the selected service is authorized and reasonably related to litigation activity.

Apportionment

The Court further declines to apportion the challenged costs. Apportionment is generally appropriate where costs are incurred for claims or parties as to which recovery is not authorized or where a particular expense cannot reasonably be attributed to recoverable litigation. Plaintiff has not established that the challenged costs relate to discrete nonrecoverable matters or that apportionment is required under the circumstances presented.

Accordingly, Plaintiff has not met its burden to show that the challenged costs are improper, unnecessary, or unreasonable.

The motion to strike or tax costs is DENIED.

Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020 within 7 days of the hearing .

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Calendar line 6
Case Name: 25CV459137
Case No.: *Alexander Xue v. EMC Santana Row, LLC*

I. Background

On February 18, 2025, self-represented plaintiff Alexander Xue ("Plaintiff") initiated this action against defendant EMC Santana Row, LLC ("Defendant"), asserting claims for violations of the Business and Professions Code and violation of the Civil Code.

According to the allegations of the complaint, Defendant owns EMC Seafood & Raw Bar ("the Restaurant") that Plaintiff visited in December 2024. (Complaint, ¶¶ 5-6.) Plaintiff intended to have a drink and was presented with a cocktail menu that contained the prices of each drink. (*Id.* at ¶ 7.) Plaintiff found the prices to be reasonable, ordered, and thereafter paid his bill. (*Id.* at ¶¶ 9-10.) Once he received his receipt, Plaintiff noticed a "Surcharge Living Wage" in the amount of $1.08, or 3.48% of his $31.00 pre-tax subtotal. (*Id.* at ¶ 11.) Plaintiff was surprised by the undisclosed charge that was added without his consent or prior knowledge. (*Id.* at ¶¶ 12-13.)

On April 8, 2025, Defendant filed an answer to the complaint. On the same day, Plaintiff filed a demurrer to the answer. On September 10, 2025, the Court (Hon. Monahan) adopted its tentative ruling finding that no proof of service was filed and the demurrer was taken off calendar.

On April 14, 2026, Plaintiff filed an identical demurrer to the answer, currently before the Court. Defendant opposes the demurrer. For the reasons stated below, the demurrer is overruled.

II. Legal Standard

A plaintiff may demur to a defendant's answer within 10 days of being served with the answer (Code Civ. Proc., § 430.40, subd. (b)) on three grounds: 1) failure to state facts sufficient to constitute a defense; 2) uncertainty; or 3) failure to state whether a contract alleged in the answer is written or oral. (Code Civ. Proc., § 430.20.)

The demurrer may be to the whole answer or to any one or more of the several defenses in the answer. (Code Civ. Proc., § 430.50, subd. (b).) The plaintiff may not, however, demur to part of a defense and, in order to determine the sufficiency of a defense, it must be considered as a whole. Each defense must be considered separately without regard to any other defense, and one defense does not become insufficient because it is inconsistent with any other parts of the answer. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733 (*South Shore Land Co.*).)

The critical inquiry when a plaintiff demurs to an answer is whether the answer raises a defense to plaintiff's stated cause of action. (*Timberidge Enterprises, Inc. v. City of Santa Rosa* (1978) 86 Cal.App.3d 873, 879-880.) Affirmative defenses presented in an answer must plead ultimate facts to the same extent as required in a complaint. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.) Thus, for any "new matter" for which a defendant has the burden of proving at trial, the defendant must plead supporting facts. (*California Academy of Sciences v. County of Fresno* (1987) 192 Cal.App.3d 1436, 1442.) Affirmative defenses consisting of legal conclusions will not survive demurrer. (*Westly v. Board of Administration* (2003) 105 Cal.App.4th 1095, 1117.)